

6.

CASE #	CASE NAME	HEARING NAME
CVME2605803	MATHEWS VS MCLEAN	DEMURRER

Tentative Ruling:

Moving party: Defendants Tim McLean, Elite Management, and Megan Palmer

Responding party: Plaintiff Jennifer Mathews

Motion filed: 6/15/26

Opposition filed: 7/9/26

Reply filed: 7/27/26

This is an HOA dispute. Plaintiff Jennifer Mathews (“Plaintiff”), in pro per, alleges that Defendants Tim McLean, Elite Management, and Megan Palmer failed to investigate her complaints, maintain common areas, supervise vendors despite HOA dues being paid, and provide financial records, causing interference with her use and enjoyment of her property. She alleges that she experienced “dry vegetation, fire hazards, rodent issues, trash accumulation, and unsafe conditions.” The operative form complaint, filed 4/24/26, identifies breach of contract and an unspecified “other” claim or claims. The complaint does not separately plead any additional cause of action.

Now, Defendants demur to the entire complaint on uncertainty grounds because it does not identify the “other” claims asserted, and that it fails to state a contract breach claim because it does not mention a contract at all.

In opposition, Plaintiff argues the complaint gives fair notice by identifying the parties, alleged conduct, and resulting damages. She argues that a demurrer does not test proof. She further argues that she can at least amend the pleading to identify the governing documents, claims, defendants’ conduct, and damages.

In reply, Defendants argue that the pleading does not provide fair notice of the claims asserted, does not separately identify any other cause of action, and does not tie any specific grievance to a legally cognizable claim.

A. Meet and Confer

Code of Civil Procedure § 430.41 requires a meet and confer process via *telephone, videoconferencing, or in person* before a party files a demurrer. The moving party must identify the specific causes of action or allegations subject to challenge, and the opposing party must provide legal support for its position. (Code Civ. Proc., § 430.41(a)(1).) The demurring party must file a declaration stating the means by which the parties met and conferred, or the responding party failed to respond or meet and confer in good faith. (*Id.* at § 430.41(a)(3).) Here, defense counsel declares that he left a voicemail, sent multiple emails, and sought a telephone conference, but Plaintiff declined a telephone, video, or in-person discussion, since she was emotionally overwhelmed. (Peters Decl., ¶¶ 3-9.) Defendants complied.

B. Demurrer

1. Special Demurrer

A special demurrer for uncertainty lies where the pleading is ambiguous or unintelligible. (Code Civ. Proc., § 430.10(f).) Demurrers for uncertainty will only be sustained where the defendant cannot reasonably determine what issues must be admitted or denied, or what claims are directed against him. (*Khoury v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612, 616.) Here, the complaint does not identify the particular causes of action, the defendant or defendants against whom each claim is asserted, or the basis for the checked box for contract claim. It is unclear if certain facts are intended to support some specific theories. The complaint therefore does not permit Defendants to determine the claims they must answer. This lack of clarity renders the complaint uncertain and is a proper ground for sustaining a special demurrer.

Here, the 1-page attachment to the form complaint does not allege the essential elements of a breach-of-contract claim: a contract, Plaintiff's performance or excuse, Defendants' breach, and resulting damage. The pleading does not identify any agreement to which Plaintiff and a defendant were parties, any contractual duty owed to Plaintiff, or any term allegedly breached. The complaint also checks the "Other" box under ¶18 but does not separately state another cause of action.

The Court sustains the demurrer in its entirety with 30 days leave to amend.

7.

CASE #	CASE NAME	HEARING NAME
UDME2600517	KERIAKOUS VS REESE	MOTION TO BE RELIEVED AS COUNSEL

Tentative Ruling: Motion unopposed. Motion **GRANTED**. Court will sign the proposed order. Attorney is relieved as counsel of record effective upon the filing of the proof of service of this signed order upon the client.